

IN THE HONOURABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA
SITTING IN ITS MARCH TERM, A.D. 2016.

BEFORE HIS HONOR: FRANCIS S. KORKPOR, SRCHIEF JUSTICE
BEFORE HIS HONOR: KABINEH M. JA'NEHASSOCIATE JUSTICE BEFORE HER
HONOR: JAMESETTA H. WOLOKOLIE.....ASSOCIATE JUSTICE BEFORE HIS HONOR:
PHILIP A.Z. BANKS, III**ASSOCIATE JUSTICE** **BEFORE HER HONOR:**
SIE-A-NYENE G. YUGH ASSOCIATE JUSTICE

Tex L. Yardamah of the city of Monrovia,
Liberia.....Informant

Bill of Information

Versus

Her Honor Comfort S. Natt, Judge, National
Labour Court.....1st Respondent
And

The Management of the National Port Authority (NPA),
By and thru its Managing Director, Madam Matilda,
Parker also of the City of Monrovia Liberia
2ndRespondent

Growing out of the case:

Tex L. Yardamah of the city of Monrovia,
Liberia.....Appellant

Versus

Appeal

His Honor Emmanuel Worjorh, Senior Hearing Officer, Minister of
Labour.....1st Appellee And

The Management of the National Port Authority, (NPA) by and thru
its Management of the City of Monrovia, Liberia 2ndAppellee

• Growing out of the case

Tex Yardamah of the City of Monrovia, Liberia,
.....Petitioner

Versus

His Honor Emmanuel Worjorh, Senior Hearing Officer, Ministry of Labour
.....1st Respondent

And

The Management of the National Port Authority, (NPA) by and thru its
Management of the
City of Monrovia, Liberia 2ndRespondent

Growing out of the Case

Tex Yardamah of the City of Monrovia, Liberia,
.....Complainant

Petition for Judicial Review

Versus

Complaint

Unfair Labour Practice

The Management of the National Port Authority,
(NPA) by and thru its Management of the

City of Monrovia, Liberia 2nd Defendant
HEARD: March 22, 2016
2016

DECIDED: August 12,

MADAM JUSTICE YUOH DELIVERED THE OPINION OF THE COURT

This is the second time that this matter is before the Supreme Court for review. The first appeal was heard during the March Term A.D. 2015, which grew out of a complaint of unfair labor practice and decided on August 13, 2015, in favor of the present informant, TexYardamah. The Court held that the informant was wrongfully dismissed and that the Management of the National Port Authority (NPA), the respondent herein having promoted the informant from the position of patrolman to that of a training officer, he was entitled to the salary commensurate with his new position.

However, the Court having observed the absence of evidence in the records as to the actual salary of a training officer to aid the Court in its computation of the informant's final award, the case was remanded to the hearing officer of the Ministry of Labour via the National Labor Court with the following instructions:

- 1) "To order the [respondent], National Port Authority (NPA) to tender to the hearing officer all relevant employment records indicating various levels of positions, classifications, commensurate salaries and that same should reflect the position and salary of a training officer. This exercise by the [respondent] shall be concluded within three (3) working days as of the date of receipt of this mandate.
- 2) The hearing officer at the Ministry of Labour upon receipt of the requisite documents from the [respondent] management, the NPA be ordered to determine the [informant]'s actual salary as a training officer and pay the [informant] thirty-nine (39) months retroactively as of the period April 19, 2006, to July 30, 2009, the dates of the [informant's] promotion and his dismissal, respectively. Noting that the [informant] continued to receive his salary of US 264.00 from the date of his promotion to his dismissal constituting 39 months, and in the spirit of equity, said amount (264.00 x 39 months = US \$10,296) received over the period of 39 months should be deducted from the salary determined from the investigation as the monthly salary of a training officer. For better clarity we herein insert a numerical formula which is expected to be adhered to by the hearing officer.
 - i) Training Officer salary x 10 months = X (Payment in lieu of reinstatement)
 - ii)
$$\frac{\text{Training Officer salary} \times 39 \text{ months} - 10,296.00}{X + Y} = Y \text{ (Retroactive salary)}$$

AwardTotal/Final
-
- 3) That given the length of time this case has remained undetermined, the Ministry of Labor is ordered to expeditiously dispose of this matter within the period of one (1) month of receipt of this Court's Judgment and file its official returns to the National Labour Court, stating its compliance to this Court's mandate. The National Labour Court upon receipt of the Ministry's

official returns is hereby mandated to transmit same to the Clerk of this Court.

- 4) Failure on the part of the Ministry of Labour to adhere to the timeline stated herein shall constitute contempt of this Court. Lawyers representing the [respondent], the NPA are sternly warned that derelictions and excuses to delay this Court's mandate shall also amount to contempt of this Court and could lead to immediate suspension and or disbarment."

Pursuant to the above mandate, the parties returned to the hearing officer at the Ministry of Labor where the respondent, the NPA submitted its approved budgets for the period 2006 through 2009, and 2013 through 2015. Although the budgets indicated no position of training officer, they show, among other things, the hierarchy of various positions within the department of security, with their attendant salaries.

The positions within the security department are in three (3) categories. The first category comprise deputy directors and assistant directors at the rank of Lieutenant Colonel, with a monthly salary range of US \$510.00 to US\$520.00. The second category comprise chief training officers, majors, captains, lieutenants, secretaries, etc., all with a monthly salary range of US \$310.00 to US \$340.00. The third category comprise of only patrolmen with a monthly salary of US \$240.00.

In computing the informant's salary and payment in lieu of reinstatement the hearing officer chose the budget for the period 2013/2015 and selected as a substitute for the position of training officer, the position of assistant director for training, planning and research, which is allotted for those security officers at the rank of Lieutenant-Colonel, a position within the first category. This position carries a monthly salary of US \$617.00 (Six Hundred Seventeen United States Dollars) monthly and using the mathematical formula stipulated in the August 13, 2015 mandate of this Court, the hearing officer multiplied US\$ 617.00 (Six Hundred Seventeen United States Dollars) by 39 (thirty-nine) months, minus the salary of a patrolman that was paid to the respondent over the period of 39 months, (US \$10, 296.00) to derive at the informant's retroactive salary, in the amount of US \$13,767.00 as his retroactive salary plus, US \$6,170.00 (US \$617.00 x 10 months) as payment in lieu of reinstatement. In summary, the hearing officer awarded a total of US \$19,937.00 (Nineteen Thousand Nine Hundred Thirty-Seven United States Dollars) as the informant's total or final award and transmitted same to the respondent for compliance.

We make it emphatically clear, that as the informant's promotion was effective as of April 19, 2006, the applicable budget period is that of the period, 2006/2009 and not 2013/2015.

The respondent informed the hearing officer that the position of assistant director for training, planning and research being far above the position of a training officer, the proximate position of chief training officer should have been

the benchmark to compute the informant's final award. Using the position of chief training officer and applying the highest salary in that range, that is, US \$340.00(Three Hundred Forty United States Dollars) monthly, the respondent computed and submitted that the informant was entitled to US \$2,964.00 as his retroactive salary plus, US \$3,400.00 as payment in lieu of reinstatement making a total of US\$6,364.00 (Six Thousand Three Hundred Sixty-Four United States Dollars). Therefore, instead of US \$19,937.00 (Nineteen Thousand Nine Hundred Thirty-Seven United States Dollars), the respondent submitted an adjusted amount of US \$6,364.00 (Six Thousand Three Hundred Sixty-Four United States Dollars) as the final award for the informant. Pursuant to this computation the respondent then issued a check for the said amount and transmitted same to the hearing officer. Both the informant and the hearing officer rejected the respondent's selected position and salary, which necessitated the matter being referred to the National Labour Court for review.

The judge of the National Labor Court sustained the computation by the respondent and awarded the informant the amount of US \$6,364.00 (Six Thousand Three Hundred Sixty-Four United States Dollars) as his final award, representing 10 months' salary payment in lieu of reinstatement and his retroactive salary.

The present bill of information filed on November 6, 2015, is the outcome of the informant's dissatisfaction with the trial court's confirmation of the award presented by the respondent. The informant basically contended that this Court's Mandate and Judgment of August 13, 2015 were being erroneously enforced, asserting that the respondent and the National Labor Court had ignored the fact that the position of training officer is equivalent to or within proximity to that of an assistant director for training, planning and research and as such he is entitled to the original award of US \$19,937.00 by the hearing officer, instead of the amount of US \$6,364.00 as was computed by the respondent and upheld by the National Labour Court. On November 13, 2015, the respondent filed its returns wherein it principally reiterated its computation and the decision of the National Labor Court.

This Court having attended to the records and listen to the arguments of the parties have decided that there is only one issue in bringing finality to this matter, which is whether or not the National Labour Court erred by upholding the computation by the respondent, the National Port Authority using the position of chief training officer to compute the informant's final award.

As stated earlier in this opinion, the budgets submitted by the respondent for the period 2006/2009 did not reflect the position of training officer, to which the informant had been promoted. Notwithstanding, and as stated earlier the salaries in the security department for that budget period fall within three (3) categories. The third category comprise of patrolmen who are in a salary range of US \$240.00. The second category comprise of chief training officers, majors, captains, secretaries, lieutenants, etc., all in a salary range between US \$310.00

to US \$340.00. The first

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category comprise of deputy directors and assistant directors in a salary range of US \$510 to US \$520.00

This Court is bewildered as to how the informant could exponentially leap over all the positions and middle categories listed above and then select the rank of a Lieutenant Colonel, and the position of assistant director for training, planning and research as a close substitute for a training officer, when he never excelled to said rank or position. We must state here that in as much as the respondent was wrong to promote the informant without providing the commensurate salary, this Court in according the appropriate relief, cannot go beyond the scope of the evidence and delve into speculations based on mere sentiments. As the final arbiter of justice, we are forever cautious that no matter how good the intentions or goals in seeking substantive justice, these good intentions can never provide a basis for any judgment that decline to give recognition to the law. Thus this Court has espoused that it will not and shall never commit a transgression to rectify or remedy an injury. *Edgar Mitchell & Sons Distillery v. Nelson*, 22LLR 67, 78 (1973); *Jawhary v. Ja'neh*, Supreme Court Opinion, October Term A.D. 2012.

Having said this, we state that it was very magnanimous on the part of the respondent, the National Port Authority to have selected the position of chief training officer, a position and salary on par with those at the rank of majors and captains and accord the informant highest salary in that category. We hold therefore, that the position of chief training officer being within the next range of positions after that of a patrolman, the National Labour Court did not commit any error in sustaining the computation as submitted by the respondent.

Before concluding this opinion we must emphatically state that this Court continues to uphold the rules which provide specific grounds for the filing of a bill of information before the Supreme Court for adherence by all lawyers as set forth in the Rules and Procedures and the Code of Moral Ethics of the Supreme Court, to wit:

- a) **A** bill of information will lie to prevent a judge or judicial officer who attempts to execute the mandate of the Supreme Court in an improper manner from doing so.
- b) A bill of information will lie also to prevent any one whomsoever from interfering with the judgment and or mandate of the Supreme Court.
- c) The bill of information shall be venue before the Court *en banc* and shall be filed with the Clerk of Court. The approval of the Chief Justice or an Associate Justice shall not be required prior to the filing thereof.
- d) Once a bill of information shall have been filed, it shall be governed by the

procedure outlined in these Rules and the Civil Procedure Law for handling of Petitions.

- e) Any counsellor who files a bill of information before this Court assigning reasons therefor other than the reasons expressly prescribed by these Rules shall be penalized by the imposition of a fine, suspension or disbarment."

The bill of information before us was filed by Counsellor Momodu G. Kandakai, believing that his client was entitled to a higher position and salary, was a grave error. Counsellor Kandakai is therefore sternly warned, not to file a bill of information where no party has interfered with or wrongly carried out the mandate of this Court. *Liberia Aggregate Corporation v. Taylor et al.*, 35LLR 3, 8 (1988); *Majority Membership of the United Church of the Lord Inc. v. Minority Membership of the United Church of the Lord Inc. et al.*, 39LLR 692, 705(1999); *Jawhary v. Ja'neh*, Supreme Court Opinion, October Term, 2012; *Wilmot Dennis et. al., v. Jonathan Shiancoe, et. al.*, Supreme Court Opinion, October Term, 2012,

WHEREFORE AND IN VIEW OF THE FOREGOING, it is the decision of this Court that there being no error or impediment in the enforcement of its final Judgment and Mandate of August 13, 2015, as was contemplated therein, the informant's bill of information is denied, and the ruling by the National Labourcourt is hereby affirmed and confirmed.

The Clerk of this Court is ordered to send a mandate to the National Labour Court commanding the judge presiding therein to resume jurisdiction over this case and give effect to this Judgment. Costs are ruled against the informant. IT IS SO ORDERED.

Bill of information denied.

When this case was called for hearing, Counsellor Momolu G. Kandakai of Gongloe and Associates Law Offices, appeared for the informant. Counsellors Idris S. Sheriff and Dexter Tiah, Sr., of Henries Law Firm, appeared for the respondent.